

TENTATIVE RULING:

On the Court's own motion, the hearing on the demurrer to first amended cross complaint is continued to January 12, 2026. Effective January 5th, 2026, this case is assigned for all purposes to the Honorable Leonard E. Marquez in Department 34.

16. 9:00 AM CASE NUMBER: N23-0180

CASE NAME: THOMAS BUTT VS. EDUARDO MARTINEZ

***HEARING ON MOTION IN RE: JUDGMENT ON THE PLEADINGS**

FILED BY: MARTINEZ, EDUARDO

TENTATIVE RULING:

The motion for judgment on the pleadings is **granted, without leave to amend**. The Court may grant a motion for judgment on the pleadings directed to a declaratory relief cause of action when the complaint shows that a party is entitled to judgment as a matter of law. (*Alterra Excess & Surplus Ins. Co. v. Snyder* (2015) 234 Cal.App.4th 1390, 1401.) This rule is applicable in the case at bar, as discussed below.

Defendants shall prepare a proposed judgment, separate from any order on this motion, for circulation and submission to the Court for signature.

I. Background

The factual background was set forth in detail in the Court's ruling on the writ cause of action, filed on September 30, 2024. It need not be repeated here.

Petitioner filed this action in January 2023, soon after the relevant transaction. Respondents filed their Answer on April 12, 2023. Nothing occurred in this case until Petitioner filed a request for hearing on the "Petition for Writ of Mandate [Code Civ Proc. 1085]." After an unusual procedural sequence of briefing, and without any notice that the hearing would include oral testimony, the Court held a law and motion hearing on the writ in September of 2024. It ruled against Petitioner with respect to the writ of mandate cause of action, but noted that the declaratory relief and injunctive relief causes of action were still outstanding.

After unsuccessful efforts to meet and confer in compliance with Code of Civil Procedure, § 439 (see Declaration of William C. Mazzota in Support of Motion), defendants filed this motion for judgment on the pleadings on September 4, 2025, arguing the remaining causes of action are duplicative of the writ cause of action and, therefore, there is nothing left to decide. Petitioner opposes the motion, arguing that the reasons for denial of the writ included the denial of oral testimony at the time of the hearing on the writ (the hearing had not been noticed as an evidentiary hearing, as required). In the alternative, if the motion is granted, Petitioner requests leave to amend.

II. Request for Judicial Notice (RJN)

The motion is supported by a request for judicial notice attaching certain parts of the City Charter and Resolution No. 168-22 of the City Council. Petitioner does not object to the request, which is **granted**.

III. Standard

Code of Civil Procedure, § 438 (c)(1)(B)(ii) allows the Court to grant a motion for judgment on

the pleadings in favor of a defendant if the complaint fails to state facts sufficient to constitute a cause of action against that defendant. A complaint "is sufficient if it alleges ultimate rather than evidentiary facts." (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550.) Like on demurrer, when considering a motion for judgment on the pleadings, the Court must accept as true all facts alleged in the complaint. (*Fireman's Fund Ins. Co. v. Sparks Construction, Inc.* (2004) 114 Cal.App.4th 1135, 1151.) The grounds for such motion must appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice. (Code Civ. Proc., § 438 (d).)

IV. Discussion

Petitioner does not oppose the motion with respect to the injunctive relief "cause of action." The Court construes this as an admission of the motion's merit.

As to declaratory relief, such remedy is appropriate where "[a]ny person [...] desires a declaration of his or her rights or duties with respect to another [...] in cases of actual controversy relating to the legal rights and duties of the respective parties [...]" (Code Civ. Proc., § 1060.) The availability of such relief is discretionary. (*Ibid.* ["court *may* make a binding declaration of these rights or duties"].) Further, courts have generally held that the declaratory relief statute should not be used for the purpose of determining an issue which can be determined in the main action. (*Hood v. Superior Court* (1995) 33 Cal.App.4th 319, 324.)

Here, as pointed out in the motion, the Court has already determined the merits of the writ cause of action. It would be improper to allow Petitioner a renewed opportunity to make the same arguments he could have presented to support a writ of mandate. Even at the time of the Court's previous ruling, Petitioner was not the Mayor. At this point, it has been more than two years since Petitioner was Mayor. Petitioner offers no facts in support of his opposition that indicate this is an ongoing problem with respect to the current City government. Accordingly, he has not met his burden to show amendment of the petition is justified. Should Petitioner contest this ruling, he shall appear prepared with facts that indicate an actual controversy as contemplated by Code of Civil Procedure, section 1060.

17. 9:01 AM CASE NUMBER: C24-01615
CASE NAME: MARIUS CANTEA VS. FCA US LLC
***HEARING ON MOTION FOR DISCOVERY TO COMPEL FURTHER RESPONSES TO PLAINTIFFS**
REQUEST FOR PRODUCTION OF DOCUMENTS, SET ONE
FILED BY: CANTEA, MARIUS
TENTATIVE RULING:

Appearance required.

18. 9:01 AM CASE NUMBER: C23-01482
CASE NAME: MAURO LUIS VS. SURINDER SINGH
***HEARING ON MOTION FOR DISCOVERY COMPEL ATTENDANCE AND TESTIMONY OF THE PERSON**